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The Estate Officer
Nasirabad Cantt.

Sub: - Notice under sec.5A (2) PP Act 1971
Ref: - Your No.87 dated 3.12.99

Sir,

1 This is again a reminder after a spate of reminders submitted reg: house nos. 533 & 532, survey numbers, plot area & land classification details as per GLR are given below.

House No.	Survey No.	Plot Area	Land Classification	Old Grant
533	280 / 752	1120 sft.	B (3)	(House Tax Paid upto 3 / 06)
532	280 / 751	405 sft	B (3)	(House Tax Paid upto 3 / 06)

Combined area of above both house lands is 1525 sft under old grant category, are situated in Ramdayal mohalla Nasirabad as shown in plan bound at site as per schedule below:-

On the North by: - Gully
On the South by: - Road
On the East by: - H.N. 534
On the West by: - RASTA

2. Overseer reported 701 sft part area, as encroachment of B (4) govt.land under PP act.

701sft area shown encroachment under report, actually belong to house nos.533 & 532 both under old grant. The details include (i) 296 sft chabutra is a part of house no.533 out of its total area 1120 sft plus (ii) 405sft is total area of house no.532. Thus 701sft area partly and fully of both houses have been included showing as encroached on B (4) govt.land in report.

Reported land area actually comprises of class B (3) old grant, specified in GLR for house nos. 532 & 533, since inception, and bound at site as per schedule above. The govt. is realizing their house tax regularly from the owner against demand notices. Therefore action under PP act is not applicable. House no.532 being initially kutcha, therefore, it gradually deteriorated by rains over the years after year's time to position of building site.

Encroached B(4) govt.land's survey number reported by overseer is 280/4485(pt). This number is different from above GLR survey numbers specified for house nos. 532 & 533 confirm that land in question is old grant of B (3) class validating the Cantt. to realize their house tax duly & regularly against demand notices since inception of house tax in Nasirabad.

3. Briefly

296 sft is part of house no.533 and 405 sft is complete house no.532 totalling 701 sft reported B (4) govt.land. This is a wrong reporting. 701 sft area originally comprises to B (3) land of old grant as per GLR over which house nos.532 & 533 exists.

House tax is not applied on govt.land, but lawfully it is realized from houses on old grant B (3) land. In this case govt. is duly realizing house tax of both houses 532 & 533 from owner since inception of house tax against demand notices throughout from the beginning to date. As such how suddenly the land area 701sft of these two houses changed into B (4) govt.land, is really illegal and tantamount to sheer harassment.

Respectfully I request your honour to consider above points to drop action under PP act and further request regularization to avoid any ambiguity for future dealings.

Thanking you highly.

Yours Sincerely

(R.C.Sharma)
S/o Narain Gordhan
1093' A' Balupura road, Adarsh nagar Ajmer